

STAFF TIME SCHEDULES

Loudoun County Public Schools (LCPS) has established guidelines for staff time schedules regarding on-call duties, remote work during normal operations, inclement weather, pandemic, and other unexpected closures for non-essential and essential positions.

A. Definition - Essential Positions

1. An essential employee is one whose position is deemed essential and critical to maintaining or returning LCPS to normal operations. An employee in a position deemed essential may be directed to report to work remotely or may be directed to report to their physical work location after normally scheduled working hours, during non-contract days, and/or or during inclement weather, pandemic, or other unexpected closure events. The designation of essential will be outlined in the employee's job description.
2. Non-Exempt Essential Employees.
 - a. In accordance with Policy 7022, Employee Classification, non-exempt exempt employees are identified in accordance with the Fair Labors Standards Act guidelines and are eligible for overtime pay.
 - b. On contract or regularly scheduled working days, non-exempt employees who are directed to work remotely or who are directed to report to their physical work location to support essential operations will receive extra pay compensated at their regular rate of pay for hours performed up to the 40 hour standard work week.
For work performed over 40 hours in a standard work week, non-exempt employees will be compensated at a rate equal to one and one-half times their regular rate of pay.
 - c. On non-contract or non-regularly scheduled working days, including LCPS holidays, non-exempt employees who are directed to work remotely or who are directed to report to their physical work location to support essential operations will receive extra pay compensated at a rate of one and one-half times their regular rate of pay without regard to the 40 hour rule.

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3. Exempt Essential Employees

- a. In accordance with Policy 7022, Employee Classification, exempt employees are identified in accordance with the Fair Labors Standards Act guidelines and are not eligible for overtime pay.
 - b. Exempt employees designated as essential receive their regular rate of pay and do not receive additional compensation.
4. An essential employee who fails to report to work as directed, whether on a contract or regularly scheduled working day or on a non-contract or non-regularly scheduled working day, will be charged leave in accordance with Policy 7710 - Annual Leave and Policy 7712 - Sick Leave, for the amount of time missed. If the employee was approved for sick leave by their supervisor, then the employee will be charged sick leave for the approved period. An essential employee who fails to report to work as directed on a non-contract day may be subject to disciplinary action.
 5. The Superintendent may deem any position essential to operations during inclement weather, pandemic, or other unexpected closure.

B. Non-Essential Positions.

1. 12-month employees. 12-month employees are required to report for work when administrative offices are open, and school buildings are closed. 12-month employees may use unscheduled annual leave without prior approval from their supervisors during inclement weather, pandemic, or other unexpected closures. Employees may be able to remote work with approval from their supervisor.
2. 10-month and 11-month employees. 10-month and 11-month employees are not required to report to work when administrative offices are open, and school buildings are closed. The supervisor may assign responsibilities and/or require remote participation in a pre-scheduled meeting during inclement weather, pandemic, or other unexpected closures. Failure to perform such assigned responsibilities or participate in these meetings may result in disciplinary action.

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- C. On-Call Duties. Certain positions and duties may be deemed as on-call to provide 24-hour service coverage. If a position is deemed on-call, this designation will be included in the job description, assignment letter, and/or memorandum of assignment. Employees in these positions or fulfilling these duties are required to maintain their availability after hours and be on-call to come back to work or to otherwise be available to respond to emergencies.
1. Non-Exempt.
 - a. Certain non-exempt positions may be deemed as on-call, and employees in these positions may be compensated for serving in an off-duty capacity to provide coverage.
 - b. On contract days, non-exempt employees working in an on-call capacity will be paid for actual time worked, in 15-minute increments, for a minimum of two (2) hours and will be compensated at a rate equal to one and one-half times their regular rate of pay without regard to the 40 forty-hour rule.
 - c. On non-contract days, non-exempt employees working in an on-call capacity will be paid for actual time worked, in 15-minute increments, for a minimum of two (2) hours and will be compensated at a rate equal to one and one-half times their regular rate of pay without regard to the 40-hour rule.
 - d. On LCPS holidays, non-exempt employees working in an on-call capacity will be paid for actual time worked, in 15-minute increments, for a minimum of two (2) hours and will be compensated at a rate equal to one and one-half their regular rate of pay for the first eight-hours worked. All hours worked over eight-hours will be paid at two and one-half times their regular rate of pay.
 2. Exempt.
 - a. Select positions may be designated as on-call and exempt employees fulfilling those duties may be compensated for providing coverage. HRTD will work with the director(s) in the department to identify on-call duties and obtain final approval from the appropriate Cabinet member.
 - b. Exempt employees working in an on-call capacity will be paid for

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actual time worked, in 15-minute increments, for a minimum of two (2) hours and will be compensated at a standard rate.

- c. The director of the employee will work with HRTD to develop a job description for on-call duties, and HRTD will determine the standard rate based on the level of work to be completed during the time the employee is on-call.

D. Remote Work. Although not all jobs can be performed satisfactorily from other locations, remote work is a flexible work arrangement that allows an employee to perform work, during any part of regular paid hours, at an approved alternate worksite, when the position is suited to such an agreement.

1. Position Criteria for Participation.

- a. The nature of the position, in terms of work performed and services provided, is the initial consideration in determining whether remote work is a possibility for a particular position. Positions eligible for remote work shall be designated in the job description. Other factors for remote work may be considered:
 - (i) Some or all of the work activities are portable and can be performed effectively while working away from the primary work location. The defined tasks do not require access to equipment or materials that cannot be moved from the primary work location, and they do not require the presence of a supervisor.
 - (ii) The employee's participation in remote work will not adversely affect the department's ability to meet and/or exceed customers' needs.
 - (iii) The position does not require daily unscheduled face-to-face contact with other employees or the public at the primary work location.
 - (iv) The technology needed to perform the tasks is available.

2. Employee Criteria for Participation.

- a. Remote work is not an entitlement, and it in no way changes the terms and conditions of employment with LCPS.

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- b. Employees considered to be good candidates for remote work shall possess or exhibit the following characteristics:
 - (i) Be able to work independently without close supervision.
 - (ii) Have the ability to prioritize work effectively and utilize time management skills.
 - (iii) Be competent at meeting deadlines and possess proactive communication and planning skills.
 - (iv) Be disciplined, reliable, professionally motivated, and show a high sense of responsibility in accomplishing work assignments.

3. Equipment and Supplies.

- a. Employees and supervisors should discuss equipment, supplies, and/or support needs before initiating a remote work agreement. Employer purchase of new equipment or support items is at the discretion of the department and contingent upon the availability of department funds to support the request.
- b. As a general rule, the employer will provide portable computer equipment and basic office supplies (pens, paper, pencils). The employee will be responsible for transporting and installing the equipment at the alternate work site and bringing the equipment in for repairs as needed.
- c. Equipment must be used for official business only. Any equipment provided remains the property of LCPS and is to be returned when the remote work agreement is terminated. If leaving employment with LCPS, employees are required to return all equipment and supplies.
- d. All use of technology must be consistent with School Board Policy and Regulation 7566, which address employee technology acceptable/responsible use, even when utilized at an alternate worksite.

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4. Work Guidelines.

- a. The employee's work hours, as noted in their contract, memo, or assignment letter, are not affected by remote work. Time schedules of employees are established in accordance with the Fair Labor Standards Act (FLSA) and the department and scale to which they are assigned.
- b. The employee's work hours must be established in advance between the employee and the supervisor and will be a part of the remote work agreement. Unless otherwise agreed upon, the employee is to be accessible by phone or email to their supervisor, other staff as needed, and provides the same level of prompt, courteous and dependable service to both internal and external customers during established working hours.
- c. Employees holding a non-exempt position must receive approval to work additional hours outside established work hours.
- d. In the event of a service outage of either telephone or internet services at the alternate worksite, the employee should contact their supervisor to discuss whether to report to the primary work location, work on assignments that are not impacted by a loss of service or take leave. In these circumstances, leave is available to employees who may experience difficulty in reporting to work and who choose to stay home instead of reporting to their primary work location. If agreed upon by their supervisor, the employee may use their accumulated compensatory time, annual leave, personal leave, or take leave without pay. Sick leave cannot be used unless the employee is already on approved sick leave.
- e. Compensation and benefits are not affected by remote work agreements. An employee will be paid at the same rate of pay and will receive the same fringe benefits as if they were working at their primary work location.
- f. The employee is responsible for designating a workspace if the alternate worksite is the employee's home. The workspace must be sufficient for the placement of equipment and supplies as well as for the preservation of confidentiality and privacy-sensitive

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information, and the employee will maintain the workspace in a safe condition, free from possible hazards.

- g. Workers' Compensation will determine compensation for employee injuries or occupational disease as in any other off-site incident. In the event of a job-related accident at the alternate worksite, the employee must immediately report the incident to their supervisor. LCPS is not liable for any third-party (family, visitor, etc.) injuries which may occur at an alternate worksite. Employees are liable and financially responsible for such occurrences. In case of injury, theft, loss, or tort liability related to remote work, the employee must allow agents of LCPS to investigate and/or inspect the remote work site. Reasonable notice of inspection and/or investigation will be given to the remote worker.
- h. The employee will attend job-related meetings, training sessions, and conferences, as requested by the employee's supervisor. In addition, the employee may be asked to participate in "short notice" meetings. The employee's supervisor will use telephone or video conference tools whenever possible as an alternative to in-person attendance at short notice meetings.
- i. Any mileage incurred from the use of the employee's personal vehicle for work-related travel will be reimbursed at the standard rate. However, mileage incurred through travel from and to the alternate work site and the primary work location is not reimbursable.
- j. The employee must maintain appropriate confidentiality of work-related information, including written documents, electronic files, and verbal transactions. Any verbal transactions, including phone conversations, will be conducted in a private area. The employee is responsible for ensuring that third-parties do not have access to any confidential information.
- k. Remote work is not a substitute for childcare or other dependent care responsibilities. If a child or dependent is present during scheduled work hours, the employee agrees to make arrangements for the care of that child or dependent. If a child or dependent is home ill, with supervisor approval, the employee may provide limited care for that child or dependent while remote

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working or use leave according to the provisions outlined in the policy and subject to the approval of the employee's supervisor.

- l. The employee and supervisor should discuss how job performance will be monitored. Supervisors are expected to monitor job performance and the related degree of success of the remote work agreement. A revision of the employee's evaluation goals, with a focus on outcomes and objectives, may be advisable.
- m. Each agreement needs to be reviewed by the employee and the supervisor in situations where the essential duties, work assignments, and/or the supervisor has changed.

5. Application Process.

- a. Either the employee may approach their supervisor, or the supervisor may approach the employee regarding the remote work agreement. Approval for a remote work agreement rests with department management.
- b. The employee and the supervisor should review the criteria as designated in the policy and the job description, paying particular attention to identifying tasks that are both part of the employee's evaluation goals and have clear objectives. The supervisor and employee should discuss whether the alternate worksite and remote environment of the employee are conducive to remote working successfully.
- c. If it is determined the tasks and the employee meet the criteria for participation, the employee and supervisor should agree upon the days and work hours, productivity measures, the designated location, communication plan, and equipment requirements for remote working.
- d. Final approval for a remote work agreement rests with the appropriate Cabinet member and is based on the needs of the department and the supervisor's recommendation. The employee must electronically sign the remote work agreement. A final approval of the agreement must be obtained from the appropriate supervisor, senior staff and Cabinet member. Electronic copies are maintained by the

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supervisor and employee and are distributed to HRTD for inclusion in the personnel file.

- e. Remote work may be discontinued, modified or temporarily suspended at any time at the discretion of the department leadership. If remote work is removed, this action cannot be grieved by the employee. The employee may also request termination of the remote work agreement.
- f. Remote work is generally not allowed for locations outside of the United States, and not all states are eligible for an employee to remote work. Prior to an employee relocating, the employee must receive approval from their supervisor.

E. Mandatory Remote Work Order and Continuity of Operations.

1. Mandatory Remote Work Order.

- a. The Superintendent may issue a remote work order and require designated employees to work remotely during inclement weather, pandemic, or other unspecified closures.
- b. When a remote work order is issued, all employees, regardless of job title or responsibilities, are expected to remain in their home or other approved work location, and be available by phone, email, and other electronic means during their regularly scheduled work hours.

2. Continuity of Operations.

- a. Employees without a remote work agreement may be directed to remote work during inclement weather, pandemic, and other unexpected closures provided that equipment and supplies are available. Employees will follow the appropriate directives of department leadership and/or the Superintendent regarding district closures.
- b. An employee's supervisor, department, or the Superintendent can direct remote work to provide continuity of operations.

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